



NATURE AND TYPES OF LOCAL GOVERNMENTS





NATURE OF LGUs

(Sec. 15, RA
7160)

LGs are administrative agencies and agencies of government distinguished from the National Government, which refers to the entire machinery of the central government (Secs 2[4] and [2], 1987 Administrative Code)

The character of LGs is two-fold, hence, the purpose of LGs is also two-fold

POLITICAL

Governmental Powers

CORPORATE

Proprietary Powers





NATURE OF LGUs

(Sec. 15, RA
7160)

Governmental Powers

LGs are AGENTS of the
STATE (**LINA JR v
PANO [2001]**)

Ex. Delivery of sand for
a municipal road; local
legislation etc

**ABSOLUTE
OBLIGATION**

Proprietary Powers

LGs are AGENTS of the
COMMUNITY and
PEOPLE (**LINA v
PANO [2001]**)

Ex. Public cemeteries,
markets, ferries and
waterworks etc

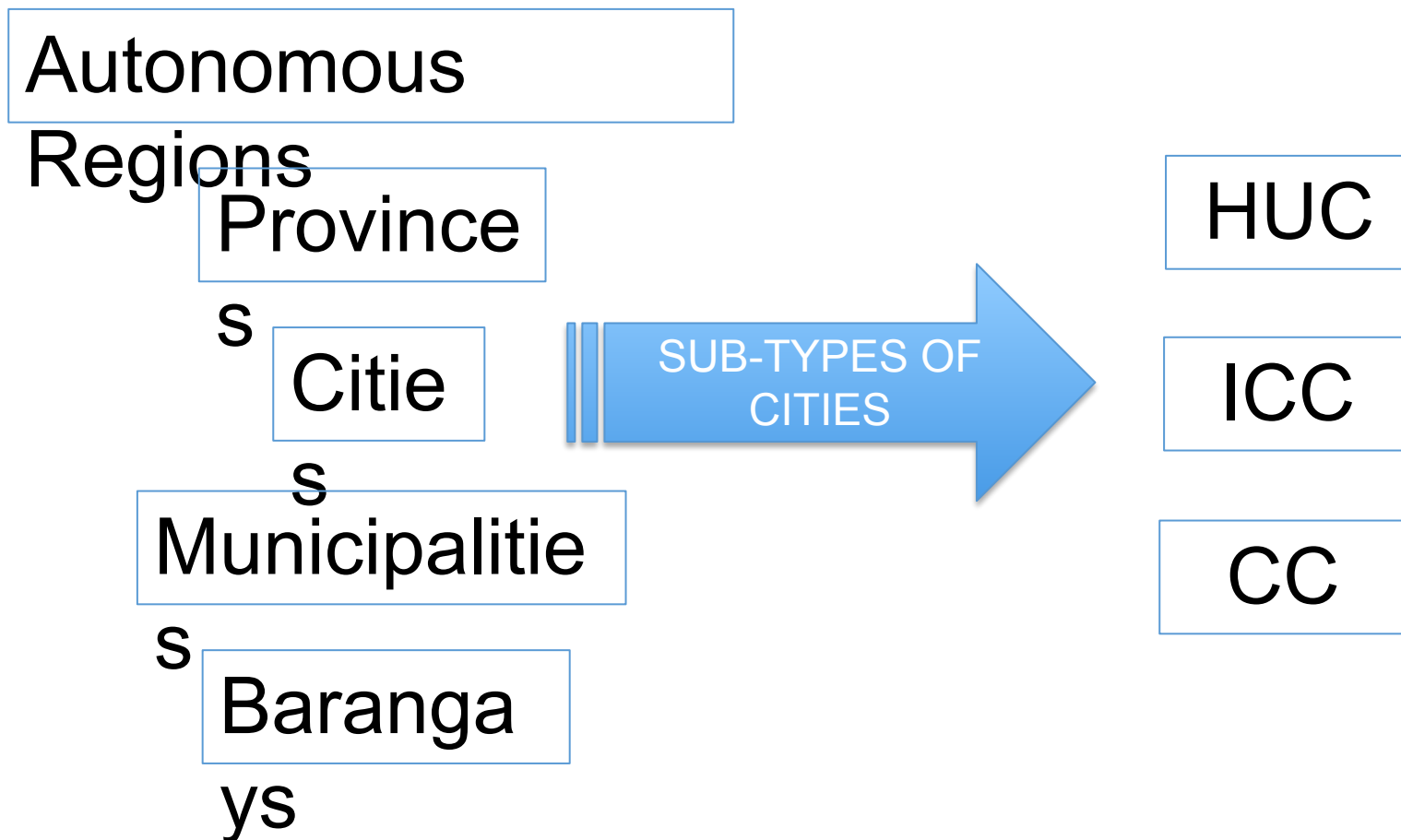
**OPTIONAL
OBLIGATION**





5 Levels of Political & Territorial Subdivisions

Sec. 1, Art X,
1987 Constitution)





ALVAREZ v GUINGONA [JAN 31, 1996]

- LGUs are an INTRA sovereign subdivision of one sovereign nation, but not intended to be an IMPERIUM IN IMPERIO; the LGU is autonomous in the sense that it is given more power, authority, responsibility and resources.

